



Vessels Protection Act 1967

1967 CHAPTER 85

An Act to make it an offence to take away a vessel without authority or to use or be a party to the use of a vessel so taken; and for purposes connected therewith.

[27th October 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Taking &c.
vessel without
authority.

1. Subject to section 4 of this Act, a person shall be guilty of an offence if, without having the consent of the owner or other lawful authority, he takes and uses any vessel, or, knowing that any vessel has been taken without such authority, uses it or allows himself to be carried in or on it.

Penalties.

2. A person guilty of an offence under section 1 of this Act shall be liable—

(a) on conviction on indictment, to a fine, or to imprisonment for a term not exceeding twelve months, or to both such fine and such imprisonment;

(b) on summary conviction, to a fine not exceeding £50, or to imprisonment for a term not exceeding three months.

Power of
jury on
trial of
indictment
for stealing
a vessel.

3. If on the trial of an indictment for stealing a vessel, the jury are not satisfied that the accused stole the vessel, but it is proved that the accused committed an offence under section 1 of this Act, the jury may find him guilty of the offence under section 1.

4. A person does not commit an offence under this Act by Saving.
anything done in the reasonable belief that he has lawful authority
to do it or in the reasonable belief that in the circumstances of
the case the owner, if asked, would have given consent to his
doing it.

5. A police constable may arrest without warrant a person Power of
reasonably suspected by him of having committed or of attempting arrest.
to commit an offence under section 1 of this Act.

6. For the purposes of this Act—

Interpretation.

- (a) "vessel" shall have the meaning assigned to it by
section 742 of the Merchant Shipping Act 1894; and 1894 c. 60.
- (b) "owner", in relation to a vessel which is the subject of a
hiring agreement or hire-purchase agreement, means
the person in possession of the vessel under that agree-
ment.

7.—(1) This Act may be cited as the Vessels Protection Act Short title
1967. and extent.

(2) This Act shall not apply to Northern Ireland.